



Appeal Decision

Site visit made on 24 July 2026

by Mrs Chris Pipe BA(Hons), DipTP, MTP, MRTPI

an Inspector appointed by the Secretary of State

Decision date: 19 August 2026

Appeal A Appeal Ref: 6009003

Bus Shelter CG – Boroughbridge Road, opp Texaco PFS, York YO26 5SZ

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against the refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01092/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal B Appeal Ref: 6009015

Bus Shelter CG – Hull Road, outside 181, York, YO10 3LF

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01109/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal C Appeal Ref: 6009018

Bus Shelter CG – Lawrence Street, opp Leake Street, York, YO10 3BR

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01110/ADV.
 - The development is Proposed single digital advertisement facing the inside of the Bus Shelter (east-facing), with a non-advertising non-illuminated Council / community panel on the reverse side, to replace existing double-sided internally illuminated 6-sheet advertisements. Proposed single digital advertisement to display static images that change every 10 seconds.
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Appeal D Appeal Ref: 6009019

Bus Shelter CG – Poppleton Road, after Renshaw Gardens, York, YO26 4QZ

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01100/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal E Appeal Ref: 6009023

Bus Shelter SF - Stonebow (south side), Black Horse Passage, York, YO1 7NP

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01114/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal F Appeal Ref: 6009053

Bus Shelter SC - Stonebow (north side), near Garden Place, York, YO1 7NP

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01084/ADV.
 - The development is described as Proposed Double-sided digital Bus Shelter advertising displays to replace existing 4no. Internally Illuminated 6-sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal G Appeal Ref: 6009025

Bus Shelter CG – Tadcaster Road, before Hob Laine, York YO24 1EU

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01082/ADV.
 - The development is described as Proposed single digital advertisement facing the inside of the Bus Shelter (south facing), with a non advertising non illuminated Council / community panel on the reverse side, to replace existing double sided internally illuminated 6 sheet advertisements. Proposed single digital advertisement to display static advertising images that change every 10 seconds.
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Appeal H Appeal Ref: 6009031

Bus Shelter CG – Holgate Road, outside 124, York, YO24 4BB

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01098/ADV.
 - The development is described as Proposed single digital advertisement facing the inside of the Bus Shelter (west facing), with a non advertising non illuminated Council / community panel on the reverse side. Proposed single digital advertisement to display static advertising images that change every 10 seconds.
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Appeal I Appeal Ref: 6009041

Bus Shelter CG - Nunnery Lane, adj 73, York YO23 1AH

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01078/ADV.
 - The development is described as Proposed Single digital Bus Shelter advertising display facing the inside of the Shelter with a non advertising, non illuminated panel on the reverse for Council / community content. Proposed Single digital display to portray static advertising images that change every 10 seconds, in sequence.
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Appeal J Appeal Ref: 6009047

Bus Shelter CG - (north most) on Piccadilly, outside Primark, York YO1 9UR

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01079/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence.
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Appeal K Appeal Ref: 6009065

Bus Shelter CG – Tadcaster Road, adj York College, York, YO24 1GB

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01081/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds in sequence.
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Appeal L Appeal Ref: 6009082

Bus Shelter - In front of Huby Court, Walmgate after Navigation Rd, York, YO1 9UD

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent for the display of an advertisement.
 - The appeal is made by Mr Garry Rhodes, Bauer Media Outdoor against the decision of City of York Council.
 - The application Ref is 25/01083/ADV.
 - The development is described as Proposed Double sided digital Bus Shelter advertising displays to replace existing Double sided Internally Illuminated 6 sheet Bus Shelter advertising displays. Proposed Digital displays to portray static advertising images that change every 10 seconds, in sequence
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Decision

1. Appeal A is dismissed.
2. Appeal B is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
3. Appeal C is allowed and express consent is granted for granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
4. Appeal D is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
5. Appeal E is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
6. Appeal F is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
7. Appeal G is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
8. Appeal H is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
9. Appeal I is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule and the following condition:

- 6) The location and orientation of the hereby approved advertisement shall be as shown on the submitted plan entitled: Location Plan (Revised).
10. Appeal J is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
11. Appeal K is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.
12. Appeal L is allowed and express consent is granted for the display of the advertisement as applied for. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the additional conditions set out in the attached schedule.

Preliminary Matters

13. The appeals are made by the same appellant for similar developments. I have determined all appeals on their merits however to avoid duplication and in the interests of brevity I have issued a single decision letter.
14. Since the determination of the application the National Planning Policy Framework (2024) has been superseded by the National Planning Policy Framework (2026) (the Framework). No party would be prejudiced or caused any injustice by me proceeding with the appeal in light of this change in policy.
15. Appeal C, Appeal E, Appeal F, Appeal G, Appeal H, Appeal J and Appeal L are located within conservation areas and some are within the setting of other heritage assets, in accordance with the statutory duty imposed by section 72(1) of the Planning (Listed Building and Conservation Areas) Act 1990; I am required to have special regard to the effect of the proposed development on the character or appearance of the area. Policy HE6 of the Framework states that substantial weight should be given to the asset's conservation when considering the potential effect of a proposal on the significance of a designated heritage asset. This is irrespective of the level of harm. The Council has not raised issue sufficient to warrant refusal on amenity grounds with regard to the effect of the proposed advertisements on any heritage asset. From the information before me and my observations during my site visits I agree.
16. The description of development for Appeal H and Appeal I refers to replacement of existing double sided internally illuminated 6 sheet advertisements. However, during my site visit I observed that the bus stops are identified by free standing signs. Whilst Google Maps show a bus shelter at both locations, these are historic and do not reflect the current situation, as such I have revised the descriptions of development accordingly.

Main Issue

17. The main issue in all the appeals is the effect of the advertisement on public safety.

Reasons

18. The National Planning Practice Guidance¹ confirms that all advertisements are intended to attract attention but proposed advertisements at points where drivers need to take more care are more likely to affect public safety. For example, at junctions, roundabouts, pedestrian crossings, on the approach to a low bridge or level crossing or other places where local conditions present traffic hazards.
19. The proposed double-sided digital advertisement is located on a bus shelter fronting Boroughbridge Road in Appeal A, within a particularly complex section of the highway network where drivers, cyclists and other road users are already required to process a significant amount of information. The site lies in close proximity to the access and egress of a petrol filling station, the junctions with Cranbrook Avenue, Princess Drive and the access to the Church of the Holy Redeemer, together with a signalised bus gate, bus lane, pedestrian crossing facilities and cycle lanes on both sides of the carriageway. The advertisement would be visible to traffic travelling in both directions and, unlike the existing static display, the proposed digital screen would change every 10 seconds, introducing a dynamic visual element into an already demanding driving environment. In these circumstances, the digital display has the potential to divert the attention of highway users at a location where their focus should remain on negotiating the competing highway movements, thereby creating an unacceptable distraction and giving rise to concerns regarding highway safety.
20. Appeal B relates to the installation of a double-sided digital advertisement on a bus shelter located on Hull Road. Whilst the site is situated close to the signalised junction with Tang Hall Lane, the surrounding highway environment is comparatively open, with good forward visibility for approaching drivers. Unlike more constrained urban locations, there are no particularly complex traffic movements or significant lane changing manoeuvres required in the immediate vicinity of the advertisement. In addition, although a cycle route passes through the area, it is accommodated on a segregated route separate from the carriageway rather than within the running lanes of traffic, reducing the number of competing movements that drivers are required to monitor simultaneously. The openness of the site and the relatively straightforward highway layout mean that it would be less likely to distract highway users to the extent that it would prejudice public safety.
21. Although the bus shelter in Appeal C is located on Lawrence Street between two signalised junctions and immediately before the approach widens to provide two lanes, the highway layout is generally straightforward, with good forward visibility and clearly defined traffic movements. The proposal is a single east-facing digital screen positioned on the inside of the bus shelter, thereby substantially reducing its prominence and the duration for which it would be visible to passing motorists. Whilst drivers are required to remain aware of buses, pedestrians and cyclists using the corridor, these are typical characteristics of an urban route and do not, in themselves, create an unusually high level of cognitive demand. Accordingly, the proposal is not considered to result in harm to public safety.
22. Whilst Poppleton Road is a relatively busy route and the carriageway is narrower than at some of the other appeal sites, these characteristics do not, in themselves, indicate that the proposed advertisement would give rise to an unacceptable impact on highway safety. The bus shelter is located close to a courtesy crossing and

¹ Paragraph: 067 Reference ID: 18b-067-20140306

nearby junctions; however, the crossing is informal in nature and does not require drivers to respond to traffic signals or other complex traffic control measures. Similarly, although a cycle route passes through the area, it is provided separately from the carriageway rather than requiring cyclists to share the running lanes with general traffic. The proposed double-sided digital display would therefore be viewed within a highway environment where vehicle movements remain generally predictable, and visibility is not unduly constrained. In the absence of compelling evidence demonstrating that the changing display would materially divert drivers' attention or increase the likelihood of conflict, the proposal is not considered to result in a harmful level of distraction. Accordingly, the advertisement proposed in Appeal D would not harm public safety.

23. Appeals E and F relate to bus shelters positioned on The Stonebow within York city centre, a location that experiences high levels of activity from buses, pedestrians and general traffic. During my site visit, traffic was observed to move slowly, reflecting the constrained nature of the city centre highway network rather than functioning as a through-route for higher-speed traffic. Whilst this observation represents only a snapshot in time, it is consistent with the character of the area, where vehicle speeds are naturally moderated by the urban environment, the frequency of bus movements and the presence of controlled junctions. In these circumstances, although the proposed digital advertisements would introduce a changing display, I am not persuaded that they would materially increase the risk of distraction to the extent that public safety would be compromised. The surrounding highway environment is one in which drivers are already expected to travel cautiously and anticipate regular interaction with buses, pedestrians and other road users. Consequently, I find insufficient evidence that the proposals would have an unacceptable effect on public safety.
24. Tadcaster Road is a busy highway, the appeal site in Appeal G is located in proximity to a signalised pedestrian and cycle crossing and cycle lanes. However, the presence of these features does not, in itself, demonstrate that the location is one where highway users would be subject to such increased cognitive demand that the proposed advertisement would give rise to an unacceptable risk to public safety. The bus shelter is situated within an open stretch of Tadcaster Road, with the surrounding land comprising allotment gardens and the open grounds of York Racecourse, and there are no nearby residential properties or other built development that would add to the complexity of the immediate environment. The proposed screen would be single-sided and inward-facing, with advertisements visible primarily to users of the bus shelter rather than directed towards approaching drivers. While the changing nature of the display has the potential to attract attention, there is insufficient evidence that its presence would materially distract highway users or compromise their ability to respond safely to the existing highway conditions. Accordingly, I do not consider that the proposal would result in harm to public safety.
25. Holgate Road is a busy urban route, Appeal H is located in an area where drivers encounter a number of features, including a signalised pedestrian crossing, the junction with Hamilton Drive East, side roads, parked vehicles, buses, cyclists and pedestrians. However, I am not satisfied that the cumulative presence of these features results in such a level of highway complexity that the proposed digital advertisement would give rise to an unacceptable risk to public safety. The

proposed screen would be positioned perpendicular to the road and would not directly face residential properties. The presence of established street lighting, including a streetlight immediately adjacent to the bus shelter, would also mean that the screen would not introduce an unexpected source of illumination into an otherwise dark environment. Whilst I accept that a changing digital display may attract some degree of attention, I have not been provided with sufficient evidence to demonstrate that this would result in material distraction or adversely affect drivers' ability to safely negotiate the existing highway environment. I conclude that the proposal would not result in harm to public safety.

26. In terms of Appeal I, I have had regard to the revised location plan before me, which shows that the proposed digital advertising screen would be positioned towards No. 67 Nunnery Lane. Nunnery Lane is a busy urban highway where drivers in the vicinity are required to respond to a range of traffic and pedestrian movements. However, the revised positioning of the screen is an important consideration in assessing its potential impact on highway safety. In this position, the screen would not be directed towards drivers merging at Nunnery Lane/Price's Lane, its orientation would limit the extent to which the display would compete for the attention of highway users on this one way dual lane street. I therefore conclude that the proposed digital advertising screen would not result in harm to public safety.
27. Piccadilly is a principal city-centre route, the appeal site, Appeal J, is located within a highly pedestrianised environment, bus stops, raised courtesy crossings and the nearby Piccadilly/Coppergate/Pavement junction. The proposed double-sided digital advertisements would be visible to northbound drivers approaching the junction. However, due to the relatively low vehicle speeds associated with the 30mph speed limit and the highly urbanised nature of the surrounding environment I find that the proposal would not result in harm to public safety.
28. In Appeal K, the site is on Tadcaster Road which is a busy route located close to a major signalised junction, a signalised pedestrian crossing and a range of pedestrian and cycling facilities. Drivers approaching the junction may be required to make lane choices and that vehicles, including buses, turn into the York College access. The screens would be positioned perpendicular to the road, with York College and Dringhouses Cemetery providing the principal context on either side, and the existing street lighting means that the proposed illumination would not introduce an unexpected or incongruous source of light. The screens would also replace existing poster advertisements of a similar scale and would display static advertisements rather than moving or animated imagery. Whilst I accept that the advertisements would change at 10-second intervals and may attract some attention, due to the long open road I am not persuaded that the proposed adverts would materially distract drivers or impair their ability to respond appropriately to the existing highway conditions. I conclude that the proposal would not result in harm to public safety.
29. Walmgate is a busy city-centre route, and drivers in the vicinity of the appeal site, Appeal L, encounter a range of highway conditions, including regular queuing, side-road junctions and cyclists. The Walmgate/Inner Ring Road junction is also located nearby, with the proposed double-sided advertisement visible to outbound drivers approaching the junction, where drivers are required to negotiate the city walls. I have had regard to the existing highway environment, including the proximity of the

junction and the likely vehicle speeds in the area. I am not satisfied that the presence of the proposed digital displays would result in an unacceptable distraction to highway users or materially affect their ability to negotiate the existing highway safely. I therefore conclude that the proposed digital advertisement would not harm public safety.

30. I find that the proposed advertisements in Appeal B, Appeal C, Appeal D, Appeal E, Appeal F, Appeal G, Appeal H, Appeal I, Appeal J, Appeal K, and Appeal L would not harm public safety. The proposed advertisements would not cause harm to public safety and, in so far as they are material to that consideration, they would also accord with Policies D13 and T1 in the City of York Local Plan, Plan Period 2017-2033 (2025) (the Local Plan), and the Framework.
31. I conclude that Appeal A the proposal would harm public safety. I have taken into account Policies D13 and T1 of the Local Plan which seeks to ensure that advertisements positively reflect public safety and so are material in this case. Given I have concluded that the proposal would harm public safety in Appeal A, the proposal conflicts with the relevant Local Plan policies.

Other Matters

32. The appellant has drawn my attention to appeal decisions relating to digital bus shelter advertisements. I been provided with limited details to compare this to the proposal before me. Notwithstanding this each development must be considered on its individual merits, and I have reached my conclusion based on the individual merit of the appeal proposal.
33. The appellant has provided highway technical notes, correspondence with the Council's highway team, journal papers, collision data which I have taken into account with regard to each appeal.
34. The appellant contends that the proposed advertisements would deliver combined social, environmental and economic public benefits for the City of York, its residents and visitors. Included in these benefits are fully recyclable bus shelters, some of which with living roof features, smaller advertisements, delivery of public/emergency messaging, social value fund and advertising support for SME businesses and local charitable causes.
35. Notwithstanding the appellants claims relating to environmental, social and economic improvements that the proposed advertisements would create, the Regulations² and Planning Practice Guidance³ are clear that the appeal shall be considered with regard to amenity and public safety. Even if these improvements were demonstrated they would not outweigh the harm I have found in relation to public safety in relation to Appeal A.

Conclusion

36. Appeal A is dismissed and express consent is refused for the advertisements as applied for.

² Regulation 3(1) of The Town and Country Planning (Control of Advertisements) (England) Regulations 2007

³ Paragraph: 026 Reference ID: 18b-026-20140306

37. Appeal B, Appeal C, Appeal D, Appeal E, Appeal F and Appeal G, Appeal H, Appeal I, Appeal J, Appeal K and Appeal L are allowed.
38. In addition to the standard five conditions, I am attaching further conditions to limit the luminance in the hours of darkness and to ensure ambient light levels during daylight in the interests of the amenity of the area.
39. In terms of ensuring that the advertisements do not cause a distraction to users of the area, I am imposing conditions relating to the minimum time permitted for each image and that each image is static and including a feature that will turn the screen off in the event that the display experiences a malfunction or error.
40. In relation to Appeal I due to the receipt of a revised location plan changing the orientation of the advertisement I have imposed a condition relation to that specific plan, for the avoidance of doubt.
41. The Council have suggested other conditions including turning off the advertisement between specific hours, I do not consider this necessary.

Chris Pipe

INSPECTOR

Schedule of Conditions

- 1) No individual advertisement display on the screen shall at any time contain moving images, animation, video or full motion images displayed.
- 2) In the hours of darkness, the advertisement display luminance shall be no greater than 300cd/m².
- 3) In daylight hours, the advertisement display luminance shall be controlled in order to reflect ambient light conditions (to ensure it is neither too bright or too dull), and shall at all times be no greater than the recommended maximum daytime luminance values set out in Table 10.5 within the Institution of Lighting Professionals - Professional Lighting Guide (PLG 05) 'Brightness of Illuminated Advertisements including Digital Displays' (or its equivalent in a replacement guide) in cd/m².
- 4) The minimum display time for each advertisement shall be 10 seconds.
- 5) The approved digital screen shall contain a feature that will turn the screen off (display a black/blank screen) in the event that the display experiences a malfunction or error.